

25NWCV04634 25NWCV04634

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-09-01

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Case Number: 25NWCV04634 Hearing Date: September 1, 2026 Dept: C

LISA

MARIE VERNOLA-SALAS vs URBAN SOCCER 5 CENTER, LLC, Case No. 25NWCV04634

Defendant

Urban Soccer 5 Center LLC applies ex parte for an order continuing trial for approximately three weeks on the following grounds: 1) certified transcripts of the trial testimony of two key witnesses in the prior unlawful detainer trial (Travis Allan Cridlebangh, the lessor's broker, and Ken Kathcart, Plaintiff's accountant/CPA) have not been delivered by the court reporter; 2) a Motion to Quash Deposition Subpoena filed by third-party Maty Espinoza is currently scheduled for October 29, 2026; 3) a Motion to Compel Further Responses to Discovery is currently scheduled for October 19, 2026.

Trial is currently scheduled for September 3, 2026. On July 29, 2026, after an evidentiary hearing was held, the Court ordered Defendant to post bond in the amount of \$62,228.83 per month, payable to the Court or into escrow, on or before the 10th day of each month, beginning on August 10, 2026, for so long as Defendant remains in possession pending the termination of the action. On August 17, 2026, Plaintiff Lisa Marie Vernola-Salas filed a Notice of Failure by Defendant to Post Bond. The ex parte application to continue trial is DENIED because Defendant failed to post bond by August 10, 2026 as ordered by the Court. "If the defendant fails to make a payment ordered by the court, trial of the action shall be held within 15 days of the date payment was due." (CCP § 1170.5, subd. (d); Garcia v. Cruz (2013) 221 Cal.App.4th Supp 1, 6 ("The court's remedy, should the defendant fail to make the payment as ordered, is to hold the trial within 15 days of the date the payment was due").) Because the 15-day period beginning August 10, 2026 has already expired, continuing trial beyond the currently scheduled trial date of September 3, 2026 is not warranted.

As to the pending motions, third party Maty Espinoza's Motion to Quash

Deposition Subpoena is ADVANCED from October 29, 2026 to today and CONTINUED to September 3, 2026 at 10:00 a.m. in Dept. SE-C.

Defendant's Motion to Compel Further Responses to Requests for Production, Set Two (Nos. 32-89) is ADVANCED from October 19, 2026 to today and CONTINUED to September 3, 2026 at 10:00 a.m. in Dept. SE-C. Moving party to give notice.